

County Commissioners Meeting September 15th 2025

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=OAt4dQoVuUA
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Delaware County Commissioners Meeting Report

Meeting Date: September 15, 2025

Presiding Officer: Commissioner Henry

1. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** The regular meeting of the Delaware County Commissioners was called to order at 9:00 AM by presiding officer Commissioner Henry, opened with the Pledge of Allegiance.
- **Attendance:**
 - **Present:** Commissioner Rian, Commissioner Bran, Commissioner Henry, Attorney Brook.
 - **Absent:** None noted.

2. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the Pledge of Allegiance.
- **Approval of Minutes:** *Not explicitly addressed in the provided transcript.*

3. Substantive Business & Board Action

- **00:01:16 Fairgrounds Board Appointment**
 - **Sponsor / Presenter:** Commissioner Henry
 - **Deliberation Summary:** The board discussed the appointment of Mr. Jim Low (recently retired from Ball State) to the fairgrounds board.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion to appoint Jim Low passed by roll call vote (Bran: Yes, Reagan: Yes, Henry: Yes).
- **00:02:29 Tabled Business: Solar Moratorium**
 - **Sponsor / Presenter:** Board of Commissioners
 - **Deliberation Summary:** Commissioners briefly touched on removing the solar moratorium from the table to vote on it, later addressing the comprehensive solar zoning ordinance.
- **00:03:26 Road Right-of-Way Dedication (Ashton's Land Surveyors - Parcel 1: Herbs Plat)**
 - **Sponsor / Presenter:** Ashton's Land Surveyors
 - **Deliberation Summary:** Presentation for dedicating road right-of-way at 5915 North State Road 3 (Muncie), outside city limits on North Walnut Street (old State Road 3). Planning/platting approval has already been granted.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by roll call vote (Regan: Yes, Brand: Yes, Henry: Yes).
- **00:04:47 Road Right-of-Way Dedication (Ashton's Land Surveyors - Parcel 2: Shrout Subdivision)**
 - **Sponsor / Presenter:** Ashton's Land Surveyors
 - **Deliberation Summary:** Request to dedicate road right-of-way at 3860 East County Road 650 South (Monroe Township) in the name of Shrout to establish a subdivision plat enabling the owner to sell a house. Platting approval has been secured.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by roll call vote (Regan: Yes, Brand: Yes, Henry: Yes).
- **00:05:42 Delaware County Sheriff's Office Firearms Training Facility Fee Structure**
 - **Sponsor / Presenter:** Andy Payne, Training Director
 - **Deliberation Summary:** Requested a fee structure for outside usage of the firearms training facility to help offset annual expenses (~\$5,000) and fund range improvements without taxpayer burden. Proposed a three-tier system: Free for local agencies (Albany, Eaton, Gaston, Selma, Daleville, Yorktown, City Police, Ball State, local hospital, FBI, ATF); \$100/day for outside law enforcement agencies (e.g., Noblesville, Speedway, Carmel, Lawrence); and \$200/day for outside private training

vendors/organizations (e.g., Sage Dynamics, Boyer, Poet Society, MTAC third-party groups).

- **Item-Specific Public Input:** None.
- **Action & Vote Disposition:** Approved to draft an ordinance implementing these fees into the firearms training fund, effective at the beginning of 2026. Approved by roll call vote (Regan: Yes, Brand: Yes, Henry: Yes).
- **00:11:49 Tabled Business: Land Bank Property Request**
 - **Sponsor / Presenter:** Mr. Howard (Land Bank) / Commissioners
 - **Deliberation Summary:** Brought off the table to discuss properties requested by the Land Bank. Discussion revealed uncertainty regarding the exact properties available (some transferred to Muncie Redevelopment Commission, others pending proper deed sale service, leaving a fuzzy list of roughly 13 properties). Commissioners requested Mr. Howard vet the list with his board and confirm interest in paying minimum bids.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Moved back to the table for further vetting by roll call vote (Bran: Yes, Henry: Yes, Regan: Yes).
- **00:15:24 Contract: Strategic Energy Audit**
 - **Sponsor / Presenter:** Commissioner Bran
 - **Deliberation Summary:** Customer participation agreement with American Electric Power (AEP) and CLEAResult to conduct an energy audit of county buildings starting with top energy users (County Building, Justice Center, Health Department, Highway Garage). Commissioners discussed adding major fairgrounds buildings and investigating utility bill/meter consolidation.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by roll call vote (Brand: Yes, Reagan: Yes).
- **00:17:32 Agreement: Village Parking Garage Comfort Letter**
 - **Sponsor / Presenter:** Jenna / Commissioners
 - **Deliberation Summary:** Consideration of a comfort letter on county letterhead expressing commissioner support for the assessor's office regarding the village parking garage.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by roll call vote (Reagan: Yes). *(Note: Transcript records unanimous assent through subsequent discussion).*
- **00:17:58 Contract: Marathon Contract**
 - **Sponsor / Presenter:** Commissioners
 - **Deliberation Summary:** Contract received late on Saturday. Commissioners agreed that legal counsel and the board needed more time to vet the document.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Tabled by roll call vote (Bram: Yes, Henry: Yes).
- **00:18:58 Second Reading: Ordinance 25-09 (Traffic Regulation on Public Streets)**

- **Sponsor / Presenter:** Commissioners
 - **Deliberation Summary:** Second reading of an ordinance regulating truck traffic on certain public streets around 400 South, 67, 600 West, 700 West, 800 West, spanning from Cowan Road to State Road 32.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Adopted by roll call vote (Brand: Yes, Rian: Yes).
- **00:19:46 Ordinance 2025-20: Comprehensive Zoning Ordinance Amendment (Solar Energy)**
 - **Sponsor / Presenter:** Commissioners / Kylan (Planning Commission)
 - **Deliberation Summary:** Discussion of feedback received late in the week from American Electric Power (requesting carve-outs for substations, poles, underground wiring, fencing, and battery storage systems not related to solar projects) and property value guarantee language clarifications requested previously by Mara Hoff. Commissioners opted to delay voting to ensure a clean, complete copy of the text.
 - **Item-Specific Public Input:** Comments addressed during Open Public Comment.
 - **Action & Vote Disposition:** Tabled by roll call vote (Rian: Yes, Bram: Yes, Henry: Yes).
- **00:23:29 Resolution: Multi-Hazard Mitigation Plan Adoption**
 - **Sponsor / Presenter:** John Cino, EMA Director
 - **Deliberation Summary:** Resolution formally adopting the Delaware County multi-hazard mitigation plan for state paperwork and in-kind match requirements. Not included in the physical packet.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Tabled until the next meeting by roll call vote (Regan: Yes, Henry: Yes).
- **00:25:11 Dispersment Request: Mental Health Facility Final Payment to BW**
 - **Sponsor / Presenter:** Commissioner Bran
 - **Deliberation Summary:** Final ARP payment request from BW for the mental health facility (\$254,590.37). Held previously pending Comcast utility completions, which BW successfully addressed.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by roll call vote (Ban: Yes).
- **00:26:26 Department Head Report: Innkeeper's Tax on Campground Accommodations (Kathy Butterfield, Chief Deputy Treasurer)**
 - **Sponsor / Presenter:** Kathy Butterfield, Chief Deputy Treasurer
 - **Deliberation Summary:** Raised compliance questions regarding whether the Delaware County Fairgrounds should collect and remit Innkeeper's Tax on campground rentals (electronic funds transfer disclosures triggered the review). State tax compliance indicated that campsites/trailer parks rented for periods under 30 days are subject to the tax. Board discussed consistency with Prairie Creek's

- cabins versus campgrounds, potential impacts on fairgrounds event attendance, and the fact that funds go to Destination Muncie.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Tabled to gather more information on other counties' practices and coordinate with legal counsel by roll call vote (Bram: Yes, Rean: Yes, Henry: Yes).
- **00:34:13 Agreement: Tax Sale Legal Services (Buchanan & Brooker Schmidt)**
 - **Sponsor / Presenter:** Brad Polk
 - **Deliberation Summary:** Proposal to hire a new tax sale specialist law firm (Alex Brookens Schmidt) at \$250/hour due to past communication/deadline issues with previous counsel. Attorney Brook raised concerns regarding potential conflicts of interest, noting Brookens Schmidt represents private tax sale certificate buyers in court against the county.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Tabled to allow legal counsel time to investigate conflict of interest concerns. Approved by roll call vote (Regan: Yes, Bramley: Yes, Henry: Yes).
- **00:41:01 Department Head Report: Purdue Extension**
 - **Sponsor / Presenter:** Justin Curley / Vicky Gaway
 - **Deliberation Summary:** Justin Curley introduced Vicky Gaway as the new 4-H Extension Educator (bringing 18 years of local science teaching experience and former 4-H background).

4. Open Public Comment / Citizen Forum

- **00:47:57 Robert Kester**
 - Addressed conflict of interest concerns regarding commissioners with family farmland affected by the solar ordinance, and questioned whether the ordinance author sitting on the planning commission presents a conflict.
- **00:49:31 Cheryl Swingley**
 - Spoke against turning down the utility solar industry, citing local job losses, low median household incomes in Delaware County compared to Randolph County, and poor population growth rankings.
- **00:53:22 Dan Barry**
 - Expressed concern over the origins and controversy surrounding the new solar ordinance, arguing that changing rules on solar developers harms business attraction and tax revenue.
- **00:55:46 Doug Marshall**
 - Thanked the commissioners for enacting the solar moratorium and supporting the planning commission's 8-1 recommendation to approve the solar

ordinance, emphasizing farmland and rural character preservation.

- **00:58:23 Joe Russell**
 - Highlighted extreme dry conditions, crop risks, and fire hazards, urging commissioners to proactively consider enacting a burn ban in coordination with local fire chiefs.
- **01:02:24 Linda Hansen**
 - Spoke on behalf of the League of Women Voters regarding home rule limitations, process transparency on the solar ordinance, and concerns over neighborly negotiations for setbacks.
- **01:05:52 Stephen Hines**
 - Noted that surrounding county income comparisons depend heavily on commuting patterns, supported caution regarding burn bans, and stated that property value guarantee filing requirements are explicitly covered in the solar ordinance text.

5. Administrative Updates & Adjournment

- **Staff / Board Announcements:**
 - **Veterans Stand Down:** Scheduled for tomorrow from 10:00 AM to 2:00 PM at Heartland Hall with giveaways and lunch.
 - **"KnowBe4" Training:** Reported at 100% completion by county staff.
 - **Meeting Rescheduling:** Due to a commissioner's absence, the next regular meeting scheduled for Monday, October 6, 2025, was moved to **Tuesday, October 7, 2025.**
 - *Additional Meetings on Oct 7:* Finance meeting at 8:45 AM and a Stormwater meeting at 11:00 AM.
 - **Burn Ban Status:** EMA Director John Cino reported he was actively polling the Delaware County Fire Chiefs Association president (Chief Randy Reid) regarding a potential burn ban consensus and would provide an update.
- **Adjournment:**
 - **Disposition:** Approved by Voice Vote (Motion to recess/adjourn passed unanimously via roll call: Bram: Yes, Regan: Yes). Time not explicitly stated in transcript.